

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL No.01/2026

M/S Sher Shah & Brothers,
Government Contractor,
Through its Representative Sher Shah S/o Haji Ali Shah
C/o Khusal General Store Pir Ghafoor Shah Road, Zhob.

.... Appellant

Versus

1. Government of Balochistan, Through its Chief Secretary, office at Civil Secretariat Zarghoon Road Quetta.
2. Communication Work PP&H Department through its Secretary, office at Civil Secretariat Zarghoon Road Quetta.
3. The Executive Engineer Buildings, C&W/CWPP&H Department Zhob.
4. Procuring Committee for the work: Construction of BHU Haji Zareef Boundary wall, Killi Wala Akram, Zhob (TSE No.)
5. Chairman Grievance Redressal Committee (GRC), C&W/CWPPH Department, Government of Balochistan.
6. M/s Abdul Malik & Brothers

.... Respondents

Quorum

1. Habib ur Rehman Jamot.....MD BPPRA / Chairman
2. Mubashir Ali Khan.....Procurement Specialist (Goods & Services) BPPRA /Member
3. Engr Junaid Shah.....Procurement Specialist (Works) BPPRA /Member
4. Iftikhar Ahmed Sanjrani.....Director (Enforcement) BPPRA / Co- Opted Member
5. Syed MuheebullahAdvocate /Private Member

APPEAL UNDER RULE-56-A OF THE BALOCHISTAN PUBLIC PROCUREMENT RULES 2014 AND ALL OTHER ENABLING PROVISIONS OF LAW AGAINST TSE NO. 252611911853 BY THE EXECUTIVE ENGINEER (BUILDING) AT DISTRICT ZHOB OF CWPP&H DEPARTMENT GOVERNMENT OF BALOCHISTAN

For the Appellant:

Mr. Juma Rahim, Representative

For Respondents No. 1:

Mr. Abdul Rashid, Executive Engineer (Building) CWPP&H, Zhob

DECISION

BRIEF FACTS

1. The Executive Engineer (Buildings), CWPP & H Department, District Zhob (Respondent No. 3), invited bids vide TSE No. 252611911853 for the procurement titled as "Construction of BHU Haji Zareef Boundary Wall, Killi Akram, District Zhob", having an estimated cost of PKR 9,899,146. The procurement was conducted under the Single-Stage Two-Envelope bidding procedure based on Least Cost Selection method, in accordance with the BPPRA Rules, 2014.

2. The Appellant, M/s Sher Shah & Brothers, participated in the tender but was technically disqualified on the ground of non-compliance with the "Similar Assignment" eligibility criterion. Aggrieved from the technical evaluation, the Appellant filed his grievance application before the Complaint Redressal Committee (CRC) on 17-12-2025, which was rejected on 01-01-2026.
3. Thereafter, the Appellant preferred the present appeal before the Procurement Review Committee (PRC), asserting that the firm of the Appellant fulfilled all eligibility requirements. The Appellant contended that valid completion certificates for similar assignments were submitted but were arbitrarily ignored by the Procuring Agency.

Prayer Clause of the Appellant

The Appellant has sought the following reliefs:

- a) To set aside and annul the impugned decision of the Grievance Redressal Committee, being illegal, arbitrary, non-speaking, and in violation of the BPPRA Rules, 2014.
 - b) To declare the disqualification of the Appellant as unlawful and void, and to hold that the Appellant fulfills all eligibility and qualification requirements.
 - c) To direct the Respondents to re-evaluate the Appellant's bid strictly in accordance with the bidding documents and the BPPRA Rules, 2014, in a transparent and fair manner.
 - d) To suspend further proceedings of the subject procurement till final decision of this appeal, in order to prevent *fait accompli*; and
 - e) To grant any other relief deemed just, proper, and equitable under the circumstances of the case.
4. Upon admission of the appeal, the Committee issued notices to the Respondents, directing them to appear and submit written replies along with the relevant record of the impugned procurement.
 5. The Respondent No. 3 appeared before this Committee and contested the Appeal on legal and factual grounds. The Respondents argued that the Appellant failed to provide completion certificates for three Similar Assignments, which they claimed was a mandatory requirement under the eligibility criteria mentioned in the bidding documents.

Issues before this Committee

6. The primary issues arising for determination are:
 - i. Whether the Appellant possessed three Similar Assignments?
 - ii. Whether the requirement of three completed similar assignments was mentioned in the bidding documents? and
 - iii. Whether the disqualification of the Appellant was in conformity with the eligibility criteria and the BPPRA Rules, 2014?

Findings of the Committee:

7. Upon careful perusal of the record, the Committee observes that, at the technical evaluation stage, the Procuring Agency specified a criteria requiring bidders to have three similar assignments. In response, the Appellant submitted evidence comprising two completion certificates and one work order relating to Similar Assignments.
8. However, despite the bidding documents requiring three Similar Assignments, the Procuring Agency disqualified the Appellant on the basis of non-submission of three completion certificates of the similar nature works, thereby introducing a condition not explicitly prescribed in the evaluation criteria.
9. Rule 35(1) of the BPPRA Rules, 2014, mandates that "**all bids shall be evaluated in accordance with the evaluation criteria and other terms and conditions set forth in the bidding documents.**" The evaluation criteria, once notified, are legally binding and

cannot be altered or reinterpreted at the evaluation stage without a formal corrigendum or addendum issued prior to bid submission. However the Procuring Agency failed to satisfy this committee regarding the condition mentioned in the bidding documents for provision of three completion certificates of similar nature.

10. The failure of the Procuring Agency to evaluate bids strictly in accordance with the stipulated criteria reflects not merely an error of judgment, but a clear violation of the BPPRA Rules, 2014, which has materially lessened the procurement process.

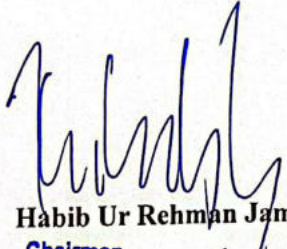
Decision:

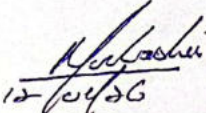
11. For the foregoing reasons, the Committee finds that the procurement process suffered from fundamental legal defects and was conducted in obvious violation of the BPPRA Rules, 2014. This Committee further directs the Procuring Agency to re-evaluate the Technical Bid of the Appellant strictly in accordance with the BPP Rules.
12. If the Procuring Agency has made any payment to Respondent No. 6 against the impugned contract, it is clarified that any such payment made during the pendency of the complaint, in violation of the applicable public procurement legal framework, shall be deemed to have been made at the Procuring Agency's own risk and without lawful authority.
13. The Procuring Agency is directed to comply with this order, determining the legal and financial implications arising from the termination of the contract, and submit a compliance report to this Committee within fifteen (15) days from the date of issuance of this decision.

The Appeal is accordingly disposed of in the above terms.

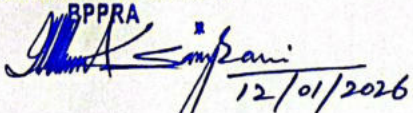
The Registrar of this Committee is directed to communicate a copy of this decision to the Appellant and all Respondents.

Announced today on 12th of January, 2026 under the seal and authority of the Chairman, Procurement Review Committee, Balochistan Public Procurement Regulatory Authority.

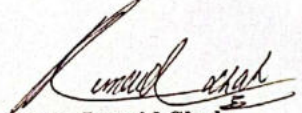

Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)


Mubashir Ali Khan (FCIPS)

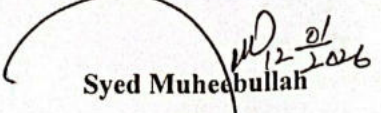
Member
Procurement Review Committee
BPPRA


Iftikhar Ahmed Sanjrani

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